TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service

PART 12—ADMINISTRATION OF NATIONAL WILDLIFE REFUGES: GENERAL REGULATIONS

TULE LAKE NATIONAL WILDLIFE REFUGE, CALIFORNIA, TRAPPING PERMITS

Under authority of section 10 of the Migratory Bird Conservation Act, of February 18, 1929 (45 Stat. 1222; 16 U.S.C. 715i), the following is ordered:

Paragraph (b) (1) *Trapping permits*, of § 12.17 *Sale of surplus animals and products*, of the Regulations for the Administration of National Wildlife Refuges under the jurisdiction of the Fish and Wildlife Service, dated December 19, 1940,[1] is hereby amended by striking out the period at the end of the subparagraph, inserting a colon, and adding the following: "*Provided*, That permits to trap on the Tule Lake National Wildlife Refuge, California, may be issued to persons who have lived for 6 months last past in Oregon and who otherwise comply with the provisions of this subparagraph."

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

NOVEMBER 26, 1942.

[F. R. Doc. 42-13105; Filed, December 10, 1942; 12:50 p. m.]

PART 27—SOUTHEASTERN REGION NATIONAL WILDLIFE REFUGES

ST. MARKS NATIONAL WILDLIFE REFUGE, FLORIDA, FISHING REGULATIONS

Under authority of section 10 of the Migratory Bird Conservation Act of February 18, 1929 (45 Stat. 1222; 16 U.S.C. 715i), as amended, and in extension of § 12.3 of the Regulations for the Administration of National Wildlife Refuges under the Jurisdiction of the Fish and Wildlife Service, dated December 19, 1940,[1] the following *is hereby ordered:*

§ 27.797 *St. Marks National Wildlife Refuge, Florida; fishing.* Noncommercial fishing is permitted during the daylight hours from May 1 to October 15, inclusive, of each year in the waters, hereinafter specified, of the St. Marks National Wildlife Refuge, Florida, in accordance with the provisions of the Regulations for the Administration of National Wildlife Refuges under the Jurisdiction of the Fish and Wildlife Service, dated December 19, 1940,[1] and subject to the following conditions, restrictions, and requirements:

(a) *Waters open to fishing.* All the waters in the following-described lands of the United States within the St. Marks National Wildlife Refuge shall be open to fishing: The East River Mounds and Main pools in sections 4, 8, 9, 10, 15, 16, 17, 20, 21, 22, 27, 28, and 29, T. 4 S., R. 2 E., and all the waters in the Panacea Unit of the refuge in T. 5 S., Rs. 2 and 3 W., and T. 6 S., R. 2 W., Tallahassee Meridian.

(b) *State fishing laws.* Any person who fishes within the refuge must comply with the applicable fishing laws and regulations of the State of Florida. Fishing under this regulation shall be by hook and line (including rod and reel) only, as defined by State law, and the use of trot and set lines and other similar contrivances is prohibited.

(c) *Fishing licenses and permits.* Any person who fishes within the refuge shall be in possession of a valid fishing license issued by the Florida Commission of Game and Fresh Water Fish, if such a license is required. This license shall serve as a Federal permit for fishing in the specified waters of the refuge and must be carried on the person of the licensee while so fishing. The license must be exhibited upon the request of any representative of the Florida Commission of Game and Fresh Water Fish or of the Fish and Wildlife Service.

(d) *Routes of travel.* Persons entering the refuge for the purpose of fishing shall follow such routes of travel as may be designated by suitable posting by the officer in charge of the refuge.

(e) *Use of boats.* Persons may use boats (other than motorboats) for fishing in the specified waters of the refuge between May 1 and September 15, inclusive, and shall possess a permit issued by the officer in charge of the refuge for the use of such boats. Boats (other than motorboats) or floating craft used for fishing purposes may be placed on the waters of the refuge only at such points as may be designated by suitable posting by the officer in charge. The use of motorboats, either inboard or outboard, is prohibited on all waters of the refuge except for official purposes.

(f) *Temporary restrictions.* During periods of waterfowl concentrations on the refuge, fishing will not be permitted in such areas of the refuge as, in the judgment of the officer in charge, should be closed to fishing in order to provide adequate protection for such waterfowl concentrations and are posted suitably by such officer.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

NOVEMBER 27, 1942.

[F. R. Doc. 42-13106; Filed, December 10, 1942; 12:50 p. m.]

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[1] 5 F.R. 5284.

Notices

DEPARTMENT OF THE INTERIOR.

General Land Office

[Public Land Order 65]

CALIFORNIA

AMENDING EXECUTIVE ORDER NO. 5827 OF MARCH 28, 1932, WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT

By virtue of the authority vested in the President and pursuant to Executive Order No. 9146[1] of April 24, 1942, *It is ordered as follows:*

Subject to valid existing rights, Executive Order No. 5827 of March 28, 1932, withdrawing public lands for use of the War Department under uthority of the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (U.S.C., title 43, secs. 141–143), is hereby amended so as to withdraw the lands described in such order from all forms of appropriation under the public-land laws, including the mining laws.

HAROLD L. ICKES,
Secretary of the Interior.

NOVEMBER 30, 1942.

[F. R. Doc. 42-13117; Filed, December 10, 1942; 12:49 p. m.]

[Public Land Order 66]

UTAH

WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT AS AN ORDNANCE STORAGE DEPOT

By virtue of the authority vested in the President and pursuant to Executive Order No. 9146[1] of April 24, 1942, and to section 1 of the act of June 28, 1934, as amended, c. 865, 48 Stat. 1269 (U.S.C., title 43, sec. 315), it is ordered as follows:

Subject to valid existing rights, the public lands in the following-described areas are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral leasing laws, and reserved for the use of the War Department as an Ordnance Storage Depot:

SALT LAKE MERIDIAN

T. 6 S., R. 4W.,
sec. 4, S½;
sec. 5, lots 3 and 4, S½NW¼, and S½;
secs. 8 and 9;
sec. 15, W½;
secs. 16, 17, 20, and 21;
sec. 22, W½;
sec. 27, W½;
secs. 28 and 29.

The areas described, including both public and non-public lands, aggregate 6,879.41 acres.

The order of the Secretary of the Interior of April 8, 1935, establishing Utah Grazing District No. 2, is hereby modified to the extent necessary to permit the use of the lands as herein provided.

It is intended that the lands described herein shall be returned to the administration of the Department of the Interior, when they are no longer needed for the purpose for which they are reserved.

HAROLD L. ICKES,
Secretary of the Interior.

NOVEMBER 30, 1942.

[F. R. Doc. 42-13118 Filed, December 10, 1942; 12:49 p. m.]

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[1] 7 F.R. 3067.

[Public Land Order 67]

NEW MEXICO

RESERVING MINERALS BELONGING TO THE UNITED STATES FOR USE IN CONNECTION WITH THE PROSECUTION OF THE WAR

By virtue of the authority vested in the President, and pursuant to Executive Order No. 9146[1] of April 24, 1942, it is ordered as follows:

Subject to valid existing rights, the minerals belonging to the United States in the following-described patented land are hereby withdrawn from all forms of appropriation under the mineral leasing laws, and reserved under the jurisdiction of the Secretary of the Interior for use in connection with the prosecution of the war:

NEW MEXICO PRINCIPAL MERIDIAN

T. 22 S., R. 29 E.,
sec. 1, E½SW¼SE¼.
The area described contains 20 acres.

This order shall take precedence over, but shall not rescind or revoke, the order of withdrawal, Potash Reserve No. 6, New Mexico No. 1, of March 11, 1926, so far as such order affects the above-described lands.

HAROLD L. ICKES,
Secretary of the Interior.

DECEMBER 1, 1942.

[F. R. Doc. 42-13119; Filed, December 10, 1942; 12:49 p. m.]

DEPARTMENT OF AGRICULTURE.

Farm Security Administration.

[Adm. Letter 615; Class. 476]

DELEGATION OF AUTHORITY TO DENVER AREA DIRECTOR

Pursuant to authority duly delegated to me, in connection with the authority presently vested in, or hereafter conferred upon, the Farm Security Administration incident to the construction, maintenance, and operation of water conservation and utilization projects established under the authority of the Act of August 11, 1939 (53 Stat. 1418), as amended by the Act of October 14, 1940 (54 Stat. 1119), or of the Interior Department Appropriation Act, 1940, item "Bureau of Reclamation," sub-item "Water Conservation and Utility Projects" (53 Stat. 685, 719), or of acts amendatory thereof or supplementary thereto, I hereby authorize the Area Director of the Farm Security Administration at Denver, Colorado, on behalf of the United States of America and with respect to project lands and property, to participate in negotiations, to sign petitions, to vote in elections, and to take other action for the organization, operation, or dissolution of irrigation districts, or similar types of organizations, insofar as he shall deem necessary or expedient for the successful prosecution of such projects. The Area Director may, from time to time, subdelegate all or any part of the authority hereby vested in him to such employee, or employees, as may be under his general supervision. In the absence of the Area Director, the authority hereby conferred upon him may be exercised by the Acting Area Director.

[SEAL] C. B. BALDWIN,
Administrator.

NOVEMBER 5, 1942.

[F. R. Doc. 42-13193; Filed, December 11, 1942; 11:34 a. m.]

MISSISSIPPI

DESIGNATION OF LOCALITIES FOR LOANS

Designation of localities in county in which loans, pursuant to Title I of the Bankhead-Jones Farm Tenant Act, may be made.

In accordance with the rules and regulations promulgated by the Secretary of Agriculture on July 1, 1941, as extended by Supplement 2 of Secretary's Memorandum No. 867 issued as of July 1, 1942, loans made in the county mentioned herein, under Title I of the Bankhead-Jones Farm Tenant Act, may be made within the localities herein described and designated. The value of the average farm unit of thirty acres and more in each of these localities has been determined in accordance with the provisions of the said rules and regulations. A description of the localities and the determination of value for each follow:

REGION VI—MISSISSIPPI

Yalobusha County

Locality I—Consisting of beat 1	$1,602
Locality II—Consisting of beats 2, 3, 4, and 5	1,308

The purchase price limit previously established for the county above-mentioned is hereby cancelled.

Approved, December 9, 1942.

[SEAL] C. B. BALDWIN,
Administrator.

[F. R. Doc. 42-13194; Filed, December 11, 1942; 11:34 a. m.]

FEDERAL COMMUNICATIONS COMMISSION.

[Docket No. 6453]

THOMAS J. WATSON, (WLAN)

ORDER DENYING PETITION AND NOTICE OF HEARING

In re application of Thomas J. Watson (WLAN), dated July 19, 1941, for modification of construction permit; class of service, broadcast; class of station, broadcast; location, Endicott, New York; operating assignment specified: Frequency, 1,450 kc; power, 250 w; hours of operation, unlimited.

You are hereby notified that the Commission on October 20, 1942, denied the petition of the applicant filed pursuant to the Memorandum Opinion of the Commission of April 27, 1942, and designated the above-entitled matter for hearing upon the following issues:

1. To determine what expenditures, if any, were made prior to April 27, 1942, in connection with the grant of application No. B1-P-1679, and the financial outlay that would be necessary to complete the construction heretofore authorized.

2. To determine what construction, if any, was undertaken prior to April 27, 1942, in connection with the permit authorized in the grant of application No. B1-P-1679.

3. To determine what materials and equipment the applicant has on hand or available for the construction authorized by permit No. B1-P-1679 and what additional materials and equipment, if any, would be necessary for the completion thereof.

4. To determine whether the granting of this application would be consistent with the policy announced by the Commission in its Memorandum Opinion dated April 27, 1942.

5. To determine whether Station WLAN, operating as proposed, would provide primary service to (a) the business districts of Endicott and Binghamton, New York, (b) the residential districts of Endicott and Binghamton, New York, and (c) the metropolitan district of Binghamton, New York, as contemplated by the Standards of Good Engineering Practice.

6. To determine whether the construction proposed in the instant application would comply with the conditions of the grant to applicant of March 11, 1941, with reference to the transmitter location and antenna system and the installation of such synchronous amplifiers as may be necessary to cover the Endicott-Binghamton business districts.

7. To determine the areas and populations which would receive primary service from Station WLAN, operating as proposed, and the primary service now available to such areas and populations.

8. To determine whether, in view of the evidence adduced upon the foregoing issues, public interest, convenience and necessity would be served by the granting of this application.

The application involved herein will not be granted by the Commission unless the issues listed above are determined in favor of the applicant on the basis of a record duly and properly made by means of a formal hearing.

The applicant is hereby given the opportunity to obtain a hearing on such issues by filing a written appearance in accordance with the provisions of § 1.382 (b) of the Commission's Rules of Practice and Procedure. Persons other than the applicant who desire to be heard must file a petition to intervene in accordance with the provisions of § 1.102 of the Commission's Rules of Practice and Procedure.

The applicant's address is as follows: Thomas J. Watson, Radio Station WLAN, 590 Madison Avenue, New York, N. Y.

Dated at Washington, D. C., December 9, 1942.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 42-13182; Filed, December 11, 1942; 10:47 a. m.]

[1] 7 F.R. 3067.